



Article: 48

Warrant Article Title:

ZONING BYLAW AMENDMENT / RESIDENTIAL PARKING

Warrant Article Text:

To see if the Town will vote to amend Section 6.1.10.A.(1) and (2), Location of Parking Spaces, Parking in Residential Districts, of the Zoning Bylaw, to clarify that it includes the Multi- Family Housing Overlay Districts; or take any action related thereto.

Requested By:

the Redevelopment Board

Report Excerpt:

The Board recommends Favorable Action (4-1, Mr. Baudoin dissenting).

The purpose of Article 48 is to clarify that Section 6.1.10, Location of Parking Spaces, of the Zoning Bylaw applies to properties within the Mass Ave/Broadway Multi-Family (MBMF) and Neighborhood Multi-Family (NMF) Housing Overlay Districts. The dissenting Board member felt that the requirements of Section 6.1.10 should not automatically apply to the Multi-Family Housing Overlay Districts, because there may be situations in which the Board wishes to be more flexible with parking for developments in those districts, particularly the limit of one driveway. The other Board members felt that it was appropriate for the same requirements to apply, and the Board can make a finding to allow more than one driveway when necessary. It was further noted that the language as proposed was consistent with the way the Board has interpreted the parking requirements in the Multi-Family Housing Overlay Districts.

Section 5.8.4.F.(1) of the Zoning Bylaw already states that the off-street parking requirements and procedures of Section 6.1 to 6.1.11 of this Bylaw shall apply in the MBMF and NMF Overlay Districts. Article 48 adds clarification language in Section 6.1.10, but does not propose any new parking requirements.

Vote Language:

That the Zoning Bylaw be and hereby is amended as follows:

Amend SECTION 6.1.10.A.(1) and (2), Location of Parking Spaces, Parking in Residential Districts, as follows:

6.1.10 Location of Parking Spaces

Required off-street parking spaces shall be provided on the same lot as the principal use they are required to serve, or when practical difficulties prevent their establishment on the same lot, they shall be established no further than 600 feet from the premises they serve, subject to approval by the Board of Appeals or Arlington Redevelopment Board, as applicable. Such spaces may be located outside or within a structure designed as a public or private garage. Projects subject to Section 3.4, Environmental Design Review, or Section 5.8, Site Plan Review, may provide parking off-site within 600 feet where it can be shown that a long-term, legally enforceable agreement has been made to secure off-site parking.

A. Parking in Residential Districts and Multi-Family Housing Overlay Districts.

- (1) For single-family, two-family, duplex, and three-family dwellings in all Residential Districts or properties developed in compliance with the Multi-Family Housing Overlay District under Section 5.8 of this Bylaw:

...

- e) To minimize visual impacts, side yards used for parking shall have a vegetated buffer when abutting a lot used for residential purposes. Except as altered by Special Permit or as part of site plan review, such vegetated buffer shall be a minimum of two and one-half feet in width, or if its width is less than two and one-half feet it must have a minimum height of 4 feet, except no such buffer shall be over two and one-half feet in height above the adjacent ground within five feet of the front lot line unless it can be shown that such buffer will not restrict visibility in such a way as to hinder the safe entry of a vehicle from the driveway to the street.
- (2) For single-family, two-family, duplex, and three-family dwellings in R0, R1, R2, R3 and R4 districts or properties developed in compliance with the Multi-Family Housing Overlay District under Section 5.8 of this Bylaw:
 - a) Only one driveway is permitted on a lot unless ...